

Amendment No. 1 to HB1021

Howell
Signature of Sponsor

AMEND Senate Bill No. 735*

House Bill No. 1021

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 54-21-107, is amended by adding the following as new subsections (b) and (c) and redesignating existing subsections (b) and (c) and subsequent subsections accordingly:

(b) Just compensation must be paid for the acquisition or for the removal of any outdoor advertising device lawfully erected as provided in 23 U.S.C. § 131 that is required to be removed for any reason, excluding removal under § 54-5-136 or § 54-21-105. Notwithstanding another law to the contrary, a lawfully erected outdoor advertising device adversely affected by condemnation is entitled to just compensation in the same manner as a structure or improvement under § 29-16-203. The use of amortization for whatever period does not constitute just compensation.

(c) Notwithstanding this section or another law to the contrary, if a political subdivision or other governmental agency requires the removal of an outdoor advertising device lawfully erected without an option to relocate the outdoor advertising device to a similarly situated location, then just compensation must be paid to the owner of the outdoor advertising device for the fair market value of the outdoor advertising device removed, unless the removal is authorized under § 54-5-136 or § 54-21-105. The use of amortization for any period does not constitute just compensation under this subsection (c).

SECTION 2. Tennessee Code Annotated, Section 54-21-107, is amended by deleting the language "subdivisions (b)(1)(A) and (B)" wherever it appears and substituting instead "subdivisions (d)(1)(A) and (B)".

SECTION 3. If any provision of this act or its application to any person or circumstance is held invalid, then the invalidity does not affect other provisions or applications of the act that can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.